

Council Meeting
August 14, 2024
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The Claremont City Council held a meeting on Wednesday, August 14, 2024, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:00 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Brian Zutter – *entered at 6:02 p.m.*
Ward III Councilor Jonathan Hayden
Assistant Mayor Debora Matteau
At-Large Councilor William Greenrose
At-Large Councilor Wayne Hemingway
At-Large Councilor William Limoges
At-Large Councilor Nicholas Koloski
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager- via telephone

NON-PUBLIC RSA 91-A :3II(d)

Councilor Zutter – entered at 6:02 p.m.

**City of Claremont
Nonpublic Session Minutes
City Council**

Date: August 14, 2024

Members Present

Councilor Koloski
Councilor Greenrose
Councilor Limoges
Assistant Mayor Matteau
Councilor Hemingway
Councilor Zutter – entered at 6:02 p.m.
Councilor Hayden

Councilor O'Hearne
Mayor Girard

Non-Members Invited to Attend Nonpublic Session

Manager Manale via telephone
Director Merrill
Director Bates
Chief Wilmot

Motion to enter Nonpublic Session made by Assistant Mayor Matteau seconded by Councilor Limoges.

Specific Statutory Reason cited as foundation for the nonpublic session:

RSA 91-A :3II(d) Consideration of acquisition, sale or lease of real or personal property which, if discussed in public, would likely benefit a party or parties whose interests are adverse to those of the general community.

Roll Call vote to enter nonpublic session: Majority vote required

Councilor Koloski - yes
Councilor Greenrose yes
Councilor Limoges -yes
Assistant Mayor Matteau - yes
Councilor Hemingway - yes
Councilor Hayden -yes
Councilor O'Hearne -yes
Mayor Girard -yes

Motion: PASSED

Entered nonpublic session at 6:01 p.m.

Motion to leave nonpublic session and return to public session by Councilor O'Hearne, seconded by Councilor Zutter. (**Majority vote by roll call.**)

Councilor Koloski - yes
Councilor Greenrose yes
Councilor Limoges -yes
Assistant Mayor Matteau - yes
Councilor Zutter - yes
Councilor Hemingway - yes

Councilor Hayden -yes
Councilor O'Hearne -yes
Mayor Girard -yes

Motion: PASSED

Start recording public meeting (if applicable).

Public session reconvened at 6:34 p.m.

Note: Under RSA 91-A:3, III. *Minutes of proceedings in nonpublic sessions shall be kept and the record of all actions shall be promptly made available for public inspection, except as provided in this section. Minutes of such sessions shall record all actions in such a manner that the vote of each member is ascertained and recorded. Minutes and decisions reached in nonpublic session shall be publicly disclosed within 72 hours of the meeting, unless, by recorded vote of 2/3 of the members present, it is determined that divulgence of the information likely would affect adversely the reputation of any person **other than a member of this board**, or render the proposed action of the board ineffective, or pertain to terrorism. In the event of such circumstances, information may be withheld until, in the opinion of a majority of members, the aforesaid circumstances no longer apply.*

Motion made to seal these minutes? If so, motion made by Assistant Mayor Matteau, seconded by Councilor Hemingway, because it is determined that divulgence of this information likely would render a proposed action ineffective; such minutes to remain sealed unless and until the purpose for which the information discussed has been requested to be sealed no longer applies.

Roll Call Vote to seal minutes (2/3 vote required)

Councilor Koloski - yes
Councilor Greenrose yes
Councilor Limoges -yes
Assistant Mayor Matteau - yes
Councilor Zutter - yes
Councilor Hemingway - yes
Councilor Hayden -yes
Councilor O'Hearne -yes
Mayor Girard -yes

Motion: PASSED

These minutes recorded by: Assistant Mayor Matteau

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to accept the minutes of the July 10, 2024, City Council meeting.

Voice vote:

Koloski – yes

Greenrose – yes

Limoges - Abstain

Matteau – yes

Hemingway – yes

Zutter - Abstain

Hayden – yes

O’Hearne – Abstain

Girard – yes

Motion carried 6-0, 3 abstain

MAYOR’S NOTES

All Out Trail Run will be hosted by Parks and Recreation this Saturday at Moody Park starting at 9:00 a.m.

August 24th, the Back-to-School Festival will be held at Barnes Park from 10:00 a.m. to Noon.

Parks and Recreation will be holding a movie night at the Visitor’s Center on North St. next Saturday at 8:00 p.m.

Sunday August 25th, the Claremont Senior Center will hold their 12th annual car show at 135 Maple Ave.

CITY MANAGER’S REPORT

Chief Wilmot gave a brief update on the City Manager, and how he had been seriously injured from an accident while on vacation.

There will be a state funded take back for Acquis Film Foam which has been stored in the basement, the Fire Chief is working with the state to have these picked up tomorrow.

The City Auction was held on the 27th of July at the community center. The city auctioned twenty-five properties; the sum total was roughly 1.4 million these figures have not been finalized.

APPOINTMENT TO BOARDS AND COMMITTEES

Airport Advisory Committee

A nomination was made by Councilor Hemingway and seconded by Assistant Mayor Matteau to appoint Mike LaFont to seat 4 of the Airport Advisory Committee

Voice vote:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway –yes

Zutter - yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

Frances J Tolles homes

A nomination was made by Assistant Mayor Matteau and seconded by Councilor Zutter to re-appoint Karlaine Livingston to Seat 2 for Frances Tolles Home Board of Trustees.

A nomination was made by Assistant Mayor Matteau and seconded by Councilor Zutter to re-appoint Claire Dole to Seat 1 for Frances Tolles Home Board of Trustees.

A nomination was made by Councilor Hayden and seconded by Councilor O’Hearne to appoint Roger Formidoni to Seat 1 for Frances Tolles Home Board of Trustees.

A nomination was made by Councilor Hayden and seconded by Councilor O’Hearne to appoint Jill Tatem to Seat 2 for the Frances Tolles Home Board of Trustees.

Roll call:

Koloski – Formidoni/Livingston

Greenrose – Dole/Livingston

Limoges – Dole/Livingston

Matteau – Formidoni/Livingston

Zutter - Dole/Livingston

Hemingway – Dole/Livingston

Hayden – Tatem/Formidoni

O’Hearne – Tatem/Formidoni

Girard – Formidoni/Livingston

Motion carried Livingston (7), Formidoni (5), Dole (4), Tatem (2) in favor of Livingston for Seat 2, and Formidoni for seat 1

CITIZEN’S FORUM

Mayor Girard gave reminder that Citizen’s forum is designed to allow you the opportunity to make the Council aware of your concerns. Please state your name and ward number, we ask you to address your concerns directly to the Council. The Council Manager will not be responding to you during this time. You are limited to five minutes on any non-agenda items. In the back of the room please write down your contact information if you’d like to be contacted as well as your concern on the clipboard for follow up.

Bonnie Miles, Resident, stated she had sent a letter to City Council sharing concerns for the seating areas on pleasant street. Ms. Miles suggested the City should honor what the seating was originally meant for, and is asking for them to be re-installed.

OLD BUSINESS

Ordinance 625, 2024 Non-Union Employee Classification Plan Attachment B- Business Development Coordinator/Deputy Director of Planning and Development

A motion was made by Assistant Mayor Matteau and seconded by Councilor Greenrose to adopt Ordinance 625.

Assistant Mayor Matteau read the explanation of proposed action into record.

Mayor Girard opened a public hearing, and no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – no

Greenrose – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes
Motion carried 8-1

Ordinance 626, 2024 Non-Union Employee Classification Plan Attachment B- Part Time Evidence Custodian

Chief Wilmot presented this position for its second reading.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to pass Ordinance 626 to a third reading at the August 28, 2024 Council meeting.
Councilor Koloski read the explanation of proposed action into record.

Councilor Greenrose asked what kind of volume is there for evidence.
Chief Wilmot noted there are thousands, and named off additional areas where evidence is currently stored.

Mayor Girard opened a public hearing, and no one spoke. Mayor Girard closed the public hearing.

Roll call:
Koloski – yes
Greenrose – yes
Limoges - yes
Matteau – yes
Zutter – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

Ordinance 627, 2024 Non-Union Employee Classification Plan Attachment B- City Treasurer – Third Reading

Director Bates explained this is a grade increase to bring the pay scale more in line for what the job entails.

A motion was made by Councilor Hemingway and seconded by Councilor Zutter to adopt Ordinance 627.

Mayor Girard opened a public hearing, and no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes
Greenrose – yes
Limoges - yes
Matteau – yes
Zutter – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

Ordinance 628, 2024 Non-Union Employee Classification Plan Attachment B- Chief Building Inspector and Health Officer

Director Bates explained this Ordinance is also a Grade increase from Grade 9 to a Grade 10.

A motion was made by Councilor Limoges and seconded by Councilor Koloski to adopt Ordinance 628.

Councilor Limoges read the explanation of proposed action into record.

Mayor Girard opened a public hearing, and no one spoke. Mayor Girard closed the public hearing.

Roll call:
Koloski – yes
Greenrose – yes
Limoges - yes
Matteau – yes
Zutter – yes
Hemingway – yes
Hayden – yes
O’Hearne – no
Girard – yes
Motion carried 8-1

Ordinance 630 Short Term Rentals

Director Merrill presented the second reading to define short term rentals in the zoning ordinance, and noted the planning board recommends this as there is a need for more short term options in the city.

Councilor Hayden brought up concern for wells, and questioned water capacity.
Director Merrill stated this is something the planning board can consider when the applicants

come in for a conditional use permit.

Assistant Mayor Matteau expressed this would give the City oversight on something that has no oversight now, wells could be a question planning would ask about when reviewing applicant for a conditional use permit.

Councilor Koloski stated just because this is not written in the ordinance doesn't mean the planning board can't ask these questions.

Assistant Mayor Matteau noted there is wording in the ordinance for the health inspector regarding water and wells.

Councilor Hemingway thinks the planning board was very thorough, but also thinks short-term rentals are taking away from long term housing, and takes away from family living which is detrimental to the neighborhood.

Mayor Girard stated people should also be able to do what they want with their homes.

Councilor Koloski added the planning board really didn't want to over-regulate this, and potentially block people.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Zutter to adopt Ordinance 630.

Assistant Mayor Matteau read the explanation of proposed action into record.

Mayor Girard opened a public hearing, and no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – no

Hayden – yes

O'Hearne – no

Girard – yes

Motion carried 7-2

Ordinance 631 Elderly Tax Exemption

Director Bates briefly explained the elderly tax exemption and noted there was in-depth information provided at the last meeting by Assessor Hamilton.

A motion was made by Councilor Hemingway and seconded by Assistant Mayor Matteau to adopt Ordinance 631.

Councilor Hemingway read the explanation of proposed action into the record.

Mayor Girard opened a public hearing, and no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

Ordinance 632 Disabled Tax Exemption

Director Bates presented Ordinance 632, and noted this was to amend the qualification levels, not exemption levels at this time.

A motion was made by Councilor Limoges and seconded by Councilor Zutter to adopt Ordinance 632.

Councilor Limoges read the explanation of proposed action into the record.

Mayor Girard opened a public hearing, and no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

Resolution 2025-8 Equipment Leases

a. Option 1 – 5 Year Department of Public Works Equipment Lease Plan

b. Option 2 – Multi-Year Year Department of Public Works Equipment Lease Plan

Director Bates stated there are two different options based on the input from the last Council meeting, a five-year plan and a multi-year plan.

Director Bates noted if the Council chooses to do a five-year plan, it can be accommodated but Public Works won't be able to purchase new equipment.

Councilor Limoges asked if Director Bates was advocating for the ten-year plan.

Director Bates stated yes, but because the leases were already budgeted for a ten-year plan, but for future leases would recommend the five-year plan.

A motion was made by Councilor Hayden and seconded by Councilor O'Hearne to accept resolution 2025-8- option 1.

Councilor Hayden read resolution 2025-8 into the record.

Mayor Girard opened a public hearing, no one spoke, Mayor Girard closed the public hearing.

Councilor Koloski asked for the list of equipment that cannot be purchased for 2025.

Roll call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O'Hearne – yes

Girard – yes

Motion carried 9-0

NEW BUSINESS

Fee Schedule - Full Gym Rental

Director Martin explained the full gym rental addition to the fee schedule and noted it would be for rare occasion, and doesn't plan to rent it regularly, the fee would be \$300.00 per hour.

Councilor Koloski suggests a minimum set of hours in order for the space to be rented, and advertised well in advanced.

Councilor Koloski asked for this item to be brought back with a minimum of hours.

By consensus the City Council agrees to have this come back with the direction council gave of a minimum rental of six hours, and a total number of rentals per year or quarter.

Fee Schedule

Director Martin explained the department bought a dunk tank, and is proposing to rent it out, stating it would only be rented within the city, the department would transport it and set it up and then pick the tank up the event is over.

Councilor Koloski appreciates the initiative and asked if there was a security deposit.

Assistant Mayor Matteau and Mayor Girard shared concerns for transporting.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Greenrose to not consider renting the dunk tank.

Roll call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Zutter – no

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-1

Charter Amendment

Councilor Hayden has brought attention back to the charter amendment and suggests it be on the ballot for 2024. Councilor Hayden did note a letter from Secretary of State David Scanlan, who [in an email] stated this was doable but does not recommend it.

Councilor Hayden noted it was important to have a larger portion of the community vote on the matter.

Mayor Girard reminded all that this has already been approved for the ballot in 2025. Mayor Girard asked City Clerk, Melcher if there would be an additional cost to add it onto the ballot this year.

City Clerk, Gwen Melcher, stated yes, because this would be two separate ballots and if it were done in 2025 it would be one ballot with no additional cost.

City Clerk, Melcher stated the Presidential election does have a greater turn out of voters, but as it would be two separate ballots, it is a lot of extra work on the poll workers. The Presidential count is long enough by itself. Both separate ballots would have to go into one machine, and then each would need to be separated in-case of any recounts.

Councilor Hemingway- thinks it should stay on for 2025.

A motion was made by Councilor Hemingway and seconded by Assistant Mayor Matteau to keep the charter amendment vote on the November 2025 ballot.

Councilor Limoges- thinks this election will be already be contentious, and is in favor of keeping it in 2025.

Bonnie Miles, Supervisor of the checklist noted working at the presidential elections is very difficult, if the charter amendment was added to the presidential election, citizens would be in the booth longer, and hopes this does not happen.

Mike Tetu, Ward I, wants the charter amendment vote to happen during the 2024 election, and even suggested a special election, and stated he thinks the Council is obstructing voters to govern themselves.

Councilor O’Hearne stated another motion is not necessary as the last motion still stands for the Charter Amendment being on the 2025 election.

Mayor Girard closed the public hearing.

Councilor Hemingway and Assistant Mayor Matteau withdrew their motion.

COMMITTEE REPORTS

Councilor Koloski reported the planning board updated language to address hazardous waste in the community.

Councilor Hayden reported the EPA Steering Committee will have community engagement at the back-to-school festival on August 24th at Barnes Park, and will start a more official outreach in October. The brown water results are coming soon and landscaping concepts are coming from Weston and Sampson.

Councilor Hayden also reported for the Conservation Commission that there is an ecological eval at Cathole, and a preliminary eval for the Ascutney bridge for ecological impacts.

Mayor Girard noted the Airport Advisory Committee had a meeting at the end of July and noted there are a few projects with the consultant, Mayor Girard noted a concern with a bid that was a year and a half old, which led to reaching out to the executive director to see what can be done to move projects along. Some projects include the taxi-way and the beacon removal.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Limoges shared “A Wall That Heals” update; Councilor Limoges finalized the application and sent it in.

Councilor O’Hearne would like to have a discussion about the Pleasant Street chairs.

Councilor Koloski wants the chairs returned to Pleasant Street, and an update for the boat landing.

Councilor Koloski also shared concern with E-bikes and regular bikes in the community riding on the sidewalk and suggested sending this to the policy committee.

Councilor Greenrose would like to have a better understanding of purchasing equipment without payment, and to review the concept of better communication.

Assistant Mayor Matteau wants to see a housing strategy committee.

Councilor Koloski wants a school zone update, Chief Wilmot stated this will be on the next agenda.

Mayor Girard reminded all there will be joint meeting with School Board on September 30th.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:07 p.m., a motion was made by O’Hearne and seconded by Assistant Mayor Matteau to adjourn.

Voice Vote:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council